

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
ADRIAN LACEY,

Plaintiff,

-against-

SUMMONS

Basis of Venue
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
INDIA J GREENE (Shield # 18828), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
Kings County
as the place of trial

Defendants.
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 23, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER INDIA J GREENE (Shield # 18828), 69th Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
ADRIAN LACEY,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER
INDIA J GREENE (Shield # 18828), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

-----X
Plaintiff **Adrian Lacey**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendant subjected him to, among other things, assault, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive

damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of the Kings County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER INDIA J GREENE, assigned Shield # 18828, who on or about March 4, 2021 was employed with the NYPD and stationed at the 69th Precinct, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER INDIA J GREENE (Shield # 18828) is being sued in their individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and

authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on May 13, 2021.

STATEMENT OF FACTS

15. On March 4, 2021, at approximately 9:00 p.m. at 99th Street and Farragut Road in Kings County, New York, numerous police officers from the 69th precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer India J. Greene (Shield # 18828) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
16. On March 4, 2021, Plaintiff was sitting in the front seat of his vehicle, which was legally parked. His brother had driven the vehicle to the location after stopping for hamburger's. After Plaintiff's

brother exited the vehicle to visit a friend, Plaintiff moved to the front driver's seat to eat his burger while waiting for his brother to return. He never operated the vehicle.

17. Plaintiff had been sitting in the driver's seat for more than ten minutes when NYPD defendant officer Greene drove by, wound down her car window, and yelled at Plaintiff "what are you looking at?" and "what did you say?". Plaintiff rolled down his window and asked "excuse me?". Officer Greene responded "what did you say?" Plaintiff said "I didn't say anything." In response, defendant officer Greene made a U-turn and pulled alongside Plaintiff's driver side window. She approached Plaintiff's vehicle and told him to get the "F out of the car." Plaintiff asked her "for what?" She responded "you made an illegal U turn." Plaintiff informed her he had been sitting in the vehicle for 15 to 20 minutes and never made an illegal U-turn. He inquired whether defendant officer would like to see his identification. She responded by telling him she didn't need his ID and to get out of the car. At that point, Plaintiff placed a call to 911 because he feared for his safety.
18. Defendant officer Greene did not possess probable cause or a reasonable suspicion that Plaintiff had committed any crime or was in possession of any contraband or illegal substance when she approached the vehicle. Her order for him to exit the vehicle was unlawful.
19. The moment defendant officer Greene spoke to Plaintiff through her car window, he was not free to walk away or leave.
20. Subsequently, additional defendant officers arrived at the scene and used a tool to break the passenger side window of the vehicle. Plaintiff exited the vehicle with his hands in the air stating "I am not resisting. Please don't shoot me."
21. Upon exiting the vehicle, Plaintiff was thrown on the car, and his hand was bent back while defendant officers placed handcuffs on him. Plaintiff never resisted arrest.

22. The handcuffs were placed very tightly on Plaintiff's wrists, causing bruising and abrasions to his wrists. Plaintiff asked repeatedly for the handcuffs to be loosened but officers refused or ignored his requests.
23. At the precinct, Plaintiff was searched and then detained before being transferred to Central Booking.
24. During her confinement at the NYPD Precinct, Plaintiff was subjected to depraved, filthy and inhumane conditions. Defendant officers did not wear a mask, despite the ongoing COVID pandemic.
25. Plaintiff was released on his own recognizance at arraignment and accepted an Adjournment in Contemplation of Dismissal on May 10, 2021. His case was dismissed and sealed on November 9, 2021.
26. As a direct result of Plaintiff's false arrest, he was illegally detained for approximately 21 hours. He attended court two times. Plaintiff's vehicle was impounded for one and a half months. When it was returned to him, it had suffered significant damage, including a broken window, a scrape on the side, and a broken radiator. Plaintiff suffered pain and injuries as a result of defendant officer placing handcuffs on him excessively tight and bending his hand back when placing handcuffs on him. He suffered severe anxiety and fear shortly before his arrest because of defendant officers' aggressive conduct toward him.

FIRST CAUSE OF ACTION

ASSAULT

27. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth herein. ^[1]_{SEP}

28. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by defendant NYPD Officer India Greene and numerous P.O. John and Jane Does prior to his false and illegal arrest when said defendants broke his car window, threw him against the vehicle, bent his wrist back, and placed handcuffs excessively tight around his wrists, causing bruising and long term pain to his wrists.
29. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. ^[1]_[SEP]
30. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^[1]_[SEP]

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 30 as if fully set forth herein.
32. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

33. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
34. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

35. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

37. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, unlawful search and seizure, and illegal detention.
39. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.

40. As a result of the foregoing, Plaintiff was subjected to assault, illegal search and undue force upon his person over the course of his false arrest.
41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
42. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

43. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
44. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
45. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
46. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
48. All of the aforementioned acts of defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
49. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
50. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF**FALSE ARREST UNDER 42 U.S.C. § 1983**

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
54. As a result of the aforesaid conduct by defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
55. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
57. Plaintiff was searched by defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
58. As a result of the aforesaid conduct by defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's vehicle and person were illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable

factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

59. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

1. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
2. Defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed the crimes of criminal possession of a controlled substance, criminal use of drug paraphernalia, and unlawful possession of marijuana.
3. Defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Manhattan County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff committed a traffic infraction and failed to obey lawful police commands, when, in fact, no one had witnessed Plaintiff driving the vehicle and officer failed to obey proper police procedures when approaching the vehicle. There was no reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses.
4. Defendant NYPD OFFICERS INDIA GREENE and JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

5. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
6. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

7. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
8. Defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by subjecting him to an arrest when he had committed no traffic infraction. Defendant officers failed to prevent other officers from attaching Plaintiff and his vehicle. Defendant officers failed to provide accurate information the District Attorney regarding Plaintiff's conduct. This misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
9. Defendants NYPD OFFICER INDIA GREENE and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

10. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

11. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
12. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
13. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

14. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
15. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
16. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
17. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff' constitutional rights.
18. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff' constitutional rights.
19. The acts complained of deprived the Plaintiff of his right:
 - F. Not to be deprived of liberty without due process of law;
 - G. To be free from seizure and arrest not based upon probable cause;
 - H. Not to have summary punishment imposed upon them; and
 - I. To receive equal protection under the law.

WHEREFORE, ADRIAN LACEY, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
March 23, 2022

Respectfully submitted:

By: /s/ *Sydney O'Hagan*
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40 Exchange Place
Suite 1000
New York, New York 10005
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sydney.ohagan@gmail.com

TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER INDIA J GREENE (Shield # 18828), 69th Precinct, Brooklyn, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
March 23, 2022



Sydney O'Hagan, Esq.